

[Signature]

Date: 1/16/19

CITY CONTRACT # _____
SOFTBALL UMPIRE AGREEMENT

THIS AGREEMENT made and entered into this _____ day of _____, 2019, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as "CITY," and the Cheyenne Umpires Association Wyoming, 6011 Whitney Road, Cheyenne, Wyoming 82009, hereinafter referred to as "ASSOCIATION."

W I T N E S E T H:

NOW, THEREFORE, in consideration of the mutual covenants and conditions contained herein, it is hereby agreed as follows:

1. The ASSOCIATION shall perform the following services during the 2019, 2020 and 2021 Men's/Women's and Co-Rec softball leagues or any additional softball leagues/tournaments which could be developed during the term of this Agreement:

a. The ASSOCIATION shall provide and assign two (2) umpires and one (1) scorekeeper to officiate at each Men's and Women's adult city league softball game and assign one (1) umpire and one (1) scorekeeper to officiate at each Co-Rec adult city league softball game according to the schedules provided to the ASSOCIATION by the CITY prior to each league. The ASSOCIATION shall provide the CITY with a schedule of the umpires and scorekeepers assigned to each adult city league softball game at the start of each period, with said schedule covering at least a two (2) week period of each league. The ASSOCIATION agrees to pay the CITY a fine equal to the current one game fee for each day beyond the deadline that the schedule is late. (See Section 4a. for fines).

b. The ASSOCIATION shall annually, no later than April 30, provide the CITY with lists setting forth the names and phone numbers of all ASSOCIATION personnel, officers, umpires and scorekeepers. The ASSOCIATION shall update such lists when changes occur.

c. The ASSOCIATION shall ensure that all umpires and scorekeepers assigned to city league softball games are properly trained and perform their duties in accordance with the current City League By-Laws and the National Association Code and Rule Book, which are incorporated by this reference as though fully set forth herein. Copies of the aforementioned City League By-Laws are available from the Cheyenne Recreation Division, 1317 Parsley Blvd., Cheyenne, Wyoming 82007. The ASSOCIATION agrees to encourage all umpires to register and certify with the current National Association chosen by the CITY. Any umpire or scorekeeper deemed by the CITY not to be properly trained can be prohibited by the CITY from working any city league softball game. The CITY will provide the ASSOCIATION written notice thereof by certified mail sent to the last known address of the principal office of the ASSOCIATION.

d. The ASSOCIATION hereby agrees that it shall develop a training team and process whereby prior to each season, umpires and scorekeepers are trained by the ASSOCIATION. The ASSOCIATION further agrees to provide the CITY with satisfactory written documentation of the training program process as well as a pre-season schedule of training sessions, an agenda for each of these sessions, and a complete listing of all umpires and scorekeepers attending the pre-season session. Upon request, the ASSOCIATION further agrees to provide the CITY a detailed written report documenting the grade each individual received in training, ranking them as passing, failing or incomplete. These materials must be received by the CITY within two (2) weeks after the request has been made. Any umpire or scorekeeper that does not successfully complete the training program will not be scheduled to work a city league softball game until the individual completes the training program successfully and appropriate documentation of completion is delivered to the CITY. The ASSOCIATION shall be fined an amount equal to the current season's one game fee for each day beyond the deadline that the required information and reports are not submitted to the CITY. (See Section 4a. for fines).

e. The ASSOCIATION agrees to develop and implement an evaluation process whereby each umpire's and scorekeeper's performance is evaluated during the first ten (10) weeks of the initial league each year during the term of this Agreement. The ASSOCIATION further agrees to provide a written report to the CITY detailing the evaluation of an umpire and scorekeeper at the request of the league director within five (5) working days of said request for each season during the term of this Agreement. The ASSOCIATION shall be fined an amount equal to the current season's one game fee for each day beyond the deadline that the required information and reports are not submitted to the CITY. (See Section 4a. for fines).

f. The ASSOCIATION scorekeeper shall keep and maintain a score book, score report form and distribute lineup cards for each game. The scorekeeper shall mark the official starting time for each game in the score book and enter the first initial and last names of each player into the score book. The scorekeeper shall also fill out the score report form and have the umpires sign the score book after each game to verify the score of each game and then the scorekeeper shall turn in the score report form to the CITY softball supervisor at the ballfield. The ASSOCIATION shall be fined for (a) failure to turn in the score report form and/or (b) for each game score not reported or reported incorrectly. (See Section 4a. for fines).

g. The ASSOCIATION shall report all player ejections to the CITY, at the Recreation Offices at 1317 Parsley Blvd., on the form provided by the CITY within two (2) working days of the ejection. It is the responsibility of the ejecting umpire to fill out and deliver said ejection report to the CITY. A fine will be assessed to the ASSOCIATION for each player ejection not reported and received within the two (2) working day period. (See Section 4a. for fines). The CITY will notify the ASSOCIATION of player's date of return.

h. The ASSOCIATION shall ensure that umpires and scorekeepers sign in with the softball supervisor at least ten (10) minutes prior to the scheduled game time on the form provided by the CITY. Upon

failure to do so, the ASSOCIATION will be fined based on the guidelines in Section 2. Additionally, the ASSOCIATION shall provide a replacement for scheduled games remaining that day for any umpire or scorekeeper absent from the first scheduled or subsequent games.

2. The ASSOCIATION hereby covenants and agrees that should it fail to provide the proper number of umpires and scorekeepers in a timely manner as required by this Agreement, it shall pay the CITY fines for each failure as per the following guidelines. (See Section 4a. for fines).

a. If an umpire/scorekeeper fails to sign in ten (10) minutes prior to scheduled game time:

- One half the current umpire fee per umpire.
- One half the current scorekeeper fee per scorekeeper.

b. If any game starts as scheduled with less than the proper number of ASSOCIATION officials, the following fines shall be added, in addition to the fines outlined above:

UMPIRES:

- One half the current umpire fee when a second umpire arrives prior to the start of the 3rd inning.
- The current umpire fee if a second umpire arrives after the start of the 3rd inning.
- The current umpire fee if a game is worked by only one umpire.

SCOREKEEPERS:

- One half the current scorekeeper fee if the scorekeeper arrives prior to the start of the 3rd inning.
- The current scorekeeper fee if the scorekeeper arrives after the start of the 3rd inning.
- The current scorekeeper fee if the game is worked without an ASSOCIATION scorekeeper.

c. If any game cannot start within one-half ($\frac{1}{2}$) hour of the scheduled game time, with at least one (1) ASSOCIATION umpire and scorekeeper, the ASSOCIATION will be fined the current game fee. As an additional penalty, the ASSOCIATION shall provide and assign the proper number of umpires and scorekeepers to officiate an additional game at no additional cost to the CITY. (See Section 4a. for fines).

3. The CITY shall pay the ASSOCIATION:

a. For each game scored and officiated by the ASSOCIATION. (See Section 4b. for fees).

b. The parties mutually agree that if inclement weather begins after the umpires and scorekeeper have arrived for the first scheduled game and the game is canceled before being started, the ASSOCIATION will receive travel pay. The parties further agree that the maximum delay due to inclement weather will be thirty (30) minutes. (See Section 4b. for fees).

c. The parties mutually agree that if a game is canceled after being started but before it is considered a complete game, the ASSOCIATION will be paid the full amount of the current game fee if the game is past the start of the second inning, and one-half of the current game fee if the game is called prior to the start of the second inning. The ASSOCIATION shall be paid the full fee upon rescheduling of said games.

The CITY will not be fined if the CITY notifies the ASSOCIATION of games being canceled due to inclement weather or other circumstances before 4:00 p.m. (See Section 4b. for fees).

d. The CITY shall also pay the ASSOCIATION an annual fee for administrative services and a per game fee, exclusive of make-up games, for scheduling services. Said fees shall be paid by the CITY along with the game fees as outlined in Section 3e. below. (See Section 4b. for fees).

e. Payment for the first 400 games to be officiated by the ASSOCIATION for the initial league each year as scheduled by the CITY shall be paid by the CITY in advance of the start of the league. Payment for subsequent games to be officiated by the ASSOCIATION for the balance of the initial league as scheduled by the CITY shall be paid prior to the mid-point of the initial league by the CITY. Payment for games in subsequent leagues for each season as scheduled by the CITY shall be paid by the CITY within two (2) weeks of the start of the subsequent leagues.

f. Within thirty (30) days after the conclusion of each league, the CITY will pay for any games officiated by the ASSOCIATION not covered by prior payment. Additionally, any adjustments for fines or overpayment to the ASSOCIATION by the CITY will be accounted for, and any refund or amount owed to the CITY by the ASSOCIATION will be paid by the ASSOCIATION within the same thirty (30) day period.

g. The ASSOCIATION will not be required to officiate forfeited games. It is mutually agreed and understood that no scheduled week night games will be played if any of the games preceding them on that field for that day have been canceled due to weather. It is further agreed that on weekends, the decision to cancel one or more games at a given field will not prohibit games on that field from resuming at a time specified by the CITY.

h. The CITY shall provide a U.S.S.S.A. sanctioned league and maintain any and all requirements for such sanctioning.

4. The following schedules detail the fines and fees in effect during the term of this Agreement. Fines and fees are (a) based on per umpire per game pay of \$25.00 in 2019, 2020 and 2021, as well as scorekeeper fees per game of \$15.00 in 2019, 2020 and 2021 for the Men's and Women's softball leagues/tournaments, and (b) based on one umpire per game pay of \$35.00 in 2019, 2020 and 2021, as well as scorekeeper fees per game of \$15.00 in 2019, 2020 and 2021 for the Co-Rec softball leagues.

a. FINE SCHEDULE:

ITEM	2019, 2020 and 2021
Schedule of officials assigned to games NOT received at start of each period, PER DAY: Men's, Women's, Men's 35 & Over, Women's 30 & Over	<u>\$65.00-2019</u> <u>\$65.00-2020</u> <u>\$65.00-2021</u>
Co-Rec (Reference Section 1a.)	<u>\$50.00</u>
Pre-season training materials NOT received two weeks after requested, PER DAY: Men's, Women's	<u>\$65.00</u>
Co-Rec (Reference Section 1d.)	<u>\$50.00</u>
Current evaluation requested by CITY is NOT received within 10 working days, PER DAY: Men's, Women's	<u>\$65.00</u>
Co-Rec (Reference Section 1e.)	<u>\$50.00</u>
Score report form NOT turned in, PER GAME: Men's, Women's	<u>\$10.00</u>
Co-Rec (Reference Section 1f.)	<u>\$10.00</u>
Score not reported/reported incorrectly, PER GAME, Scorekeepers: Men's, Women's	<u>\$5.00</u>
Co-Rec (Reference Section 1f.)	<u>\$5.00</u>
First initial and last name of each player NOT logged in official scorebook, PER GAME: Men's, Women's	<u>\$5.00</u>
Co-Rec (Reference Section 1f.)	<u>\$5.00</u>
Ejection report NOT received in two working days: Men's, Women's	<u>\$10.00</u>
Co-Rec (Reference Section 1g.)	<u>\$10.00</u>
<u>Failure to sign in 10 minutes prior to game time</u> Umpires:	
Men's, Women's	<u>\$12.00</u>
Co-Rec	<u>\$15.00</u>

Scorekeepers:	
Men's, Women's	<u>\$7.00</u>
Co-Rec	<u>\$7.00</u>
(Reference Section 2a.)	

Game starts with less than proper number of umpires

Second umpire arrives prior to start of 3rd inning:

Men's, Women's	<u>\$14.00</u>
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Second umpire arrives after start of 3rd inning:

Men's, Women's	<u>\$23.00</u>
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Scorekeeper arrives prior to start of 3rd inning:

Men's, Women's	<u>\$5.00</u>
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Co-Rec	<u>\$5.00</u>
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Scorekeeper arrives after start of 3rd inning:

Men's, Women's	<u>\$10.00</u>
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Co-Rec	<u>\$10.00</u>
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(Reference Section 2b.)

Game does NOT start within ½ hour of scheduled game time with one umpire and one scorekeeper:

Men's, Women's	<u>\$65.00*</u>
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Co-Rec	<u>\$50.00*</u>
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*Plus One Game at no cost to CITY

(Reference Section 2c.)

b. FEE SCHEDULE:

ITEM	2019, 2020 & 2021
Game fee for each game scored and umpired:	
Men's, Women's	<u>\$65.00-2019</u>
	<u>\$65.00-2020</u>
	<u>\$65.00-2021</u>
Co-Rec	<u>\$50.00</u>
(Reference Section 3a.)	
Travel fee of \$5.00 per umpire/scorekeeper when all games canceled at the field by the Association before the games begin:	
Men's, Women's	<u>\$15.00</u>
Co-Rec	<u>\$10.00</u>
(Reference Section 3b.)	
<u>Game fee for games canceled before complete</u>	
Game is past the start of 2nd inning:	
Men's, Women's	<u>\$65.00-2019</u>
	<u>\$65.00-2020</u>
	<u>\$65.00-2021</u>
Co-Rec	<u>\$50.00</u>

Game has NOT gone past the start of 2nd inning:

Men's, Women's

\$32.50

Co-Rec

\$25.00

(Reference Section 3c.)

Annual administrative service fee:

\$600.00

(Reference Section 3d.)

Scheduling fee PER GAME, exclusive of make-ups:

\$.35

(Reference Section 3d.)

5. The ASSOCIATION hereby agrees that it shall acquire, prior to the start of the season, a fidelity bond in an amount of at least Fifty Thousand Dollars (\$50,000) to cover any pecuniary loss which the CITY may sustain through the fraud, dishonesty, forgery, theft, embezzlement, misapplication, or misappropriation or any other dishonest or criminal act or omission, of or by any of the officers, employees, or agents of the ASSOCIATION.

6. Insurance Requirements:

a. Commercial General Liability Insurance: For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

The ASSOCIATION shall name the CITY as an Additional Insured by endorsement on the Association's General Liability policy and shall provide the CITY with a copy of the endorsement.

The ASSOCIATION shall provide the CITY with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon ASSOCIATION to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement. In addition, ASSOCIATION shall provide the CITY with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The CITY's failure to request or review such policies, endorsements, or certificates shall not affect the CITY's rights or ASSOCIATION's obligation hereunder. Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

7. The ASSOCIATION hereby covenants and agrees that it shall comply with the laws of the United States as it relates to the proper reporting of income received through performance of this Agreement.

8. The ASSOCIATION hereby covenants and agrees to defend, indemnify and hold harmless the CITY, its employees or agents from any and all claims for damage or injuries to umpires or scorekeepers sustained at city league softball games and to defend, indemnify, and hold harmless the CITY employees and agents from any claim or suit for damages or injury to persons or property arising from the officiating of city league softball games.

9. In compliance with the Drug-Free Workplace Act of November, 1988, the CITY has established an alcohol and controlled substance policy that pertains to alcohol and drug usage by CITY employees. All independent contractors under contract with the CITY, and their employees or subcontractors, are required to comply with the provisions of the CITY's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on CITY property or other sites occupied by the ASSOCIATION while performing under this Agreement. It is the responsibility of the ASSOCIATION to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of the requirements and to insure compliance with it. If the ASSOCIATION, its employees or subcontractors are found in violation of this policy, this Agreement may be immediately terminated by the CITY without liability to the CITY.

10. The City expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, as set forth in Wyo. Stat. § 1-39-101, *et seq.*

11. It is agreed that either party may terminate this Agreement without cause, by giving the other party not less than thirty (30) days written notice by certified mail sent to the last known address of the principal office of the other party. It is further agreed that the ASSOCIATION will be responsible to continue providing services pursuant to this Agreement for thirty (30) days after notice is given as described herein.

12. All correspondence required by this Agreement shall be remitted to the Recreation Division, 1317 Parsley Blvd., Cheyenne, Wyoming 82007.

13. This Agreement consisting of nine (9) pages represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

14. The ASSOCIATION shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, and the Americans with Disabilities Act (ADA), 42 U.S.C. 12101, *et seq.* The ASSOCIATION shall assure that no person is discriminated against based on the grounds of age, sex, race, religion, national origin or disability in connection with performance of this Agreement.

15. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

16. The construction interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the venue shall be the First Judicial District, Laramie County, Wyoming.

17. The ASSOCIATION shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

18. The ASSOCIATION shall function as an independent contractor for the purposes of this Agreement. The ASSOCIATION shall assume sole responsibility for any debts or liabilities that may be incurred by the ASSOCIATION in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the ASSOCIATION or its agents or employees to act as an agent or representative of or on behalf of the CITY or to incur any obligation of any kind on the behalf of the CITY.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The Agreement date is the date of the last signature affixed to this page.

(SEAL)
ATTEST:

CITY OF CHEYENNE, WYOMING
BY:

KRISTINA F. JONES, CITY CLERK

MARIAN J. ORR, MAYOR

DATE

ASSOCIATION
BY:

ASSOCIATION
BY:

OFFICER (PRESIDENT)

OFFICER (VICE-PRESIDENT)

DATE